



कर्मचारी राज्य बीमा निगम
(श्रम एवं रोजगार मंत्रालय, भारत सरकार)
EMPLOYEES' STATE INSURANCE CORPORATION
(Ministry of Labour & Employment, Govt. of India)



मुख्यालय
Headquarters
पंचदीप भवन सी०आई०जी रोड, नई दिल्ली-110002
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File No: T-11012/125/2025-LEG

Date:08-05-2026

OFFICE MEMORANDUM

Subject: Ensuring Written Instructions to Panel Counsel in Litigation Matters and Streamlining Court Submissions

It has been observed during review of matters before the Hon'ble CAT, PB, New Delhi that, in certain cases, submissions have been recorded in the orders to the effect that statements were made **"on instructions."** However, in some such instances, no written instructions were found available on record. This creates legal and administrative concerns, as statements made before judicial fora are binding on the Corporation and may have implications in compliance and contempt proceedings.

Further, it has been informally brought to notice that Panel Counsel are facing practical difficulties due to lack of timely and documented instructions from the concerned field units. In order to ensure accountability and to streamline litigation management, you are hereby instructed as follows:-

A communication be issued to all Panel Counsels advising that:

- a. They shall, as far as practicable, seek and act only upon written instructions from the Corporation before making any statement or submission before judicial fora;
- b. In cases of urgency where oral instructions are relied upon, they shall ensure that the same are confirmed by the instructing officer in writing **within three (03) working days;**
- c. They shall avoid making submissions implying assurance/compliance "on instructions" unless duly authorized and supported by record;

Simultaneously, all field units and branches of Headquarters are instructed that:

- i. Written instructions must be invariably provided to Panel Counsel in all matters;
- ii. In urgent situations requiring oral directions, the same shall be formally reduced into writing and communicated **within three (03) working days;**
- iii. A proper record of such instructions shall be maintained by the concerned branch to ensure accountability;

iv. The above directions shall be duly apprised to all empanelled Advocates engaged by them;

This issues with the approval of Director General.

Yours Sincerely
**Digitally signed by
Vijay Kumar
Date: 08-05-2026
16:28:19**

Vijay Kumar
Deputy Director (Legal)

Copy To:

1. PPS / PS to DG, FC, CVO, CTO
2. All ICs, MCs Hqrs., Zonal ICs and Zonal MCs, for kind information and necessary action.
3. Regional Directors/Deans/Medical Superintendents of all Regions and Colleges/Hospitals with an instruction to communicate this to all their Panel Counsels.
4. All Panel Counsels engaged by Headquarters.
5. Website Contents Manager with a request to upload the same on Website.
6. Guard file